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Attorneys for Petitioner,
HYUN JU MINTON

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/31/2024
Clerk of the Court
BY: ALISON AGBAY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

In Re: Estate of Tae Jung Kim	CASE NO. PES-24-307296 **RESPONSE PROBATE NOTES** Date: June 11, 2024 Time: 9:00 a.m. Dept.: 204 Judge:

In addressing the issues raised by the Probate Examiner in the Probate Examiner's Notes dated May 29, 2024, Petitioners respond as follows:

Issue 1) No DE-147S form is on file. This form must be filed confidentially and conventionally with a pleading cover sheet attached (cannot be e-filed).

Petitioner has submitted for filing over the counter and said document was filed on May 30, 2024.

Issue 2) Please supplement the petition to provide responses to the following verified by the petitioner:

Issue 2.i) *Item 2d(2): The bond amount must be rounded up the nearest thousand dollars ($410,000). LRSF 14.16(L).*

Petitioner Hyun Ju Minton requests that bond be fixed at $410,000.

Issue 2.ii) *Items 3a & 3c: Please provide facts in support of the decedent's domicile in San Francisco at the time of his death, despite the place of death in Virginia.*

Decedent purchased the real property and improvements located at 15 Teresita Blvd, Apt. 7, San Francisco 94127-1240 (the "Property") which is identified as Decedent's residence on Decedent's death certificate on or about November 14, 2007, and had been residing at the Property until his death on September 23, 2023. Attached as Exhibit A is a true and correct copy of a letter from a credit card company reflecting that decedent received his mail at the Property. Decedent died while on a work trip for his employer and has no real connection to Virginia.

Issue 2.iii) *Item 3g(2)(a): The petitioner has no priority if the decedent's mother is the sole heir. See Probate Code section 8462. If the decedent's mother has a conservator of the estate or agent under a durable financial power of attorney, please provide a nomination signed by the conservator or POA agent, together with a copy of letters of conservatorship or power of attorney. If there is no conservator or POA agent, a nomination must be obtained from the San*

Francisco Public Administrator having higher priority, and notice must be given to or waived by the Public Administrator.

Petitioner was appointed as agent under power of attorney for Bok Za Kim on November 22, 2023. A true and correct copy of the Power of Attorney with Acceptance to Act is attached hereto as Exhibit B.

Issue 2.iv) *Item 8: Please provide the name and date of death of the decedent's father.*

Decedent's father named Young Sung "Ys" Kim died on December 12, 2007 in Clinton Massachusetts.

Dated: 05/31/2024

FRIEDEMANN GOLDBERG WARGO HESS LLP

SHAWN R. LORING
Attorney for Petitioner
HYUN JU MINTON

VERIFICATION

I, HYUN JU MINTON, am the Petitioner in the above-captioned matter. I am familiar with the contents of the foregoing **RESPONSE TO PROBATE NOTES**. The information supplied therein is based on my own personal knowledge and/or has been supplied by my attorneys or other agents and/or compiled from available documents. The information contained in the foregoing document is true, except as to the matters which were provided by my attorneys or other agents or compiled from available documents, including all contentions and opinions, and, as to those matters, I am informed and believe that they are true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 31 day of May 2024, at Boston, Massachusetts.

HYUN JU MINTON

5/31/24

LAURIE POLAND
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires
August 9, 2024

EXHIBIT A

P.O. Box 108
St. Louis, MO 63166-0108

20989 D

November 27, 2023

000066043 01 AB 0.537 106481897342747 P Y

TAE J KIM
15 TERESITA BLVD APT 7
SAN FRANCISCO CA 94127-1240

Account number ending with: 8313

Dear TAE J KIM:

We have recently been notified that the above named cardmember is now deceased. On behalf of Cardmember Service, we would like to offer our sincere condolences on your loss.

We are sending this letter to help you understand the next steps we will take in processing this account. We will attempt to verify the death through public record sources. This process may take two to three weeks. If you wish you may send documentation to the address below.

P.O. Box 108
St. Louis, MO 63166-0108

Or you may fax the documents to 866.271.0708.

Again, please accept our condolences for your loss.

Sincerely,

Cardmember Service
800.844.4836
Monday - Friday: 8:00 a.m. - 5:00 p.m. CT

We accept relay calls.

P.O. Box 108
St. Louis, MO 63166-0108

20538

March 13, 2024

000033086 01 SP 106481986479762 P Y
TAE JUNG KIM
15 TERESITA BLVD APT 7
SAN FRANCISCO CA 94127-1240

Account number ending with: 8020
Balance: $813.02
Payment Due: $537.00

SERIOUS COLLECTION ACTION ALERT

Dear TAE JUNG KIM:

Your action is required regarding your credit card account. Ignoring this will mean your account will be reported as charged off to the national credit bureaus.

CALL 1-877-838-4346
TO RESOLVE YOUR DEBT

We offer numerous options that can give you fixed monthly payment plans and settlement options to budget your expenses more effectively. Please call us today or visit us at usbank.com/ltrpay to review your payment options.

COLLECTION ACTIVITY WILL CONTINUE UNTIL
YOUR DEBT IS RESOLVED

Collection activity will continue until the debt is satisfied even after the account has been reported as charged off. We would like to help. Please call today. Let's work together to find a solution.

Sincerely,

Cardmember Service
1-877-838-4346

Our hours of operation are: Mon - Fri: 7:00 a.m. - 9:00 p.m. CT, Sat: 7:00 a.m. - 5:00 p.m. CT

Mailed Payments should be sent to: P.O. Box 790408, St. Louis, MO 63179-0408

We accept relay calls.

The creditor and issuer is U.S. Bank National Association.

EXHIBIT B

DURABLE POWER OF ATTORNEY

KNOW ALL BY THESE PRESENTS, that I, BOK ZA KIM, of Shirley, Massachusetts, do hereby appoint my daughter, HYUN JU MINTON, of Winchester, Massachusetts, as my agent and attorney-in-fact, to act on my behalf with regard to the following:

1. To receive dividends, interest and income arising from my assets; to endorse checks drawn to my order; to withdraw funds standing in my name from time to time on deposit in any bank or trust company; to purchase, sell or exchange any bonds or shares of stock now held by me or which I may hereafter acquire; to vote in person or by proxy all such stock or other securities; to delegate investment decisions to an investment manager or agent; and to execute such instruments of transfer and assignment as may be necessary or desirable in connection therewith;

2. To open, close and manage financial accounts in my name, including but not limited to, checking accounts, savings accounts, financial accounts and other related financial instruments and to conduct all necessary financial business in reference to the management of my financial assets;

3. To establish user names and passwords for electronic accounts; to have access to and modify any existing user name and password established by me or a predecessor agent for any of my digital assets; to access, modify, control, archive, transfer, and delete my digital assets and to access, use, and control any or all of my digital devices in order to accomplish the foregoing. Digital assets shall include, but not be limited to, text, images, multimedia information, and all other personal property stored by or through any digital account and the content thereof, including sent and received emails, email accounts, digital music, digital photographs, gaming accounts, software licenses, social network accounts, file sharing accounts, domain name accounts, information stored in the "cloud," financial accounts, web hosting accounts, tax preparation service accounts, online stores and auction site accounts, and any other similar digital asset that currently exists or may be developed as technology advances. Digital devices shall include, but not be limited to, desktops, laptops, tablets, peripherals, storage devices, mobile telephones, smart phones, smart watches, and any similar hardware that currently exists or may be developed as technology advances;

4. To act in all respects regarding any insurance policies which I own or in which I have or may have a beneficial interest, including but not limited to the following acts: transfer of ownership, change of beneficiary, cancellation of policy, purchase of insurance or additional insurance and exercise of any options available with respect to said policies, subject to the following limitation: My agent shall have no power to designate my agent directly or indirectly as a beneficiary, contingent beneficiary, or owner, and receive a greater share or proportion of any such benefits than my agent would have otherwise received, unless such change is consented to by all other beneficiaries who would have received the benefits but for the proposed change. The preceding limitation shall not apply to any designation of my agent as beneficiary or owner in a fiduciary capacity, with no beneficial interest;

5. To borrow such sums of money as may be necessary or desirable and to execute notes from time to time in my name, giving such security as my agent may determine;

6. To sell and dispose of any real or personal property, tangible and intangible, which I own or in which I have any interest to such person or persons, for such amount, and on such terms as my agent may determine; in my name, to execute and deliver instruments of transfer and assignment to convey my interest in said property;

7. To purchase or acquire any real or personal property, tangible and intangible, which my agent may determine to be in my interest and for such amount and on such terms as my agent may determine; in my name, to execute and deliver any consideration, documents or instruments of transfer which may be required to purchase or acquire said property;

8. To have full access to any safe deposit box rented in my name, to remove the contents, and surrender the box;

9. To give, transfer or convey any of my assets to charities and persons of natural affection to whom I would normally consider making such gifts, transfers or conveyances, (including gifts to the agent) having in mind the ultimate objective of such gifts, transfers or conveyances being the qualification for state or federal medical, welfare or other assistance programs for my benefit or for the reduction of state and federal estate and inheritance taxes on my estate; provided, however, that my agent, individually, shall not be able to make gifts, transfers or conveyances to my agent, my agent's estate, my agent's creditors or the creditors of my agent's estate in excess of the maximum amount over which an individual may have a power of withdrawal without its lapse in such year being deemed to be a release of such power under Section 2514(e) of the Internal Revenue Code of 1986, as amended and any corresponding Sections of any future Internal Revenue Code;

10. To disclaim any assets to which I may be entitled, to the extent allowable under applicable law;

11. To exercise and to otherwise deal in any way with any power of appointment, general, special, limited or otherwise, of which I may be a donee; provided, however, that my agent, individually, shall not be able to make gifts, transfers or conveyances to my agent, my agent's estate, my agent's creditors or the creditors of my agent's estate in excess of the maximum amount over which an individual may have a power of withdrawal without its lapse in such year being deemed to be a release of such power under Section 2514(e) of the Internal Revenue Code of 1986, as amended and any corresponding Sections of any future Internal Revenue Code;

12. To establish a new domicile;

13. To handle federal, state and local tax matters; to prepare, sign, and file federal, state, and local income, gift and other tax returns of all kinds, including without limitation joint returns, FICA returns, payroll tax returns, claims for refunds, requests for extensions of time, petitions to the tax court or other courts regarding tax matters, receipts, offers, waivers, closing agreements, consents (including without limitation consents to split gifts and consents and agreements under section 2032A or 2057 of the Internal Revenue Code of 1986, as amended (the

"Code"), or any successor section thereto), and any and all other tax related documents; to execute Internal Revenue Service Form 2848 and any other power of attorney under federal, state or local law, naming my agent or any other person my agent shall deem qualified to act on my behalf with respect to any and all tax matters; to pay taxes due, collect and make such disposition of refunds as my agent shall deem appropriate, post bonds, receive confidential information and contest deficiencies determined by the Internal Revenue Service or any state or local taxing authority; to exercise any elections I may have under federal, state or local tax law; generally to represent me or obtain professional representation for me in all tax matters and proceedings of all kinds and for all periods before all officers of the Internal Revenue Service and state and local authorities; and to engage, compensate and discharge attorneys, accountants and other tax and financial advisers to assist in connection with any and all tax matters. The preceding powers are listed to comply with federal law and nothing provided herein shall be deemed to limit any authority granted to my agent elsewhere in this document.

14. To commence and prosecute, or to defend, all actions or proceedings involving any matter in which I have or may have any interest or concern, and to compromise, settle and adjust all claims and demands whatsoever due and hereafter to become due or belonging to me;

15. To transfer all or any part of my assets, real or personal, tangible or intangible, to any trust which is in existence or which I may now or in the future create;

16. To apply to the Social Security Administration to become representative payee of my Social Security benefit payments, and to then act as my representative payee in accordance with applicable law;

17. To make any and all applications to other state or federal medical, welfare or other assistance programs for benefits to which I may be entitled;

18. To continue or participate in the operation of any business or other enterprise;

19. To employ as investment counsel, custodians, brokers, accountants, appraisers, attorneys-at-law, or other agents or such persons, firms or organizations (including any of my said attorneys-in-fact and any firm of which any of my said attorneys-in-fact may be a member or employee) as deemed necessary or desirable, and to pay such persons, firms, or organizations such compensation as is deemed reasonable; and to determine whether or not to act upon the advice of any such agent without liability for acting or failing to act thereon;

20. To establish one or more "individual retirement accounts" or other retirement plans or arrangements in my name. In connection with any pension, profit sharing or stock bonus plan, individual retirement arrangement, Roth IRA, § 401(k), § 403(b) annuity or account, § 457 plan, or any other retirement plan, arrangement or annuity in which I am a participant or of which I am a beneficiary (whether established by my agent or otherwise) (each of which is hereinafter referred to as "such Plan"), my agent shall have the following powers, in addition to all other applicable powers granted by this instrument:

A. To make contributions (including "rollover" contributions) or cause contributions to be made to such Plan with my funds or otherwise on my behalf;

B. To receive and endorse checks or other distributions to me from such Plan, or to arrange for the direct deposit of the same in any account in my name or in the name of any trust which is in existence or which I may now or in the future create;

C. To elect a form of payment of benefits from such Plan, to withdraw benefits from such Plan, to make contributions to such Plan and to make, exercise, waive or consent to any and all elections and/or options that I may have regarding contributions to, investments or administration of, distribution from, or form of benefits under, such Plan; and

D. To designate one or more beneficiaries or contingent beneficiaries for any benefits payable under such Plan on account of my death, and to change any such prior designation of beneficiary made by me or by my agent, subject to the following limitation: My agent shall have no power to designate my agent directly or indirectly as a beneficiary or contingent beneficiary to receive a greater share or proportion of any such benefits than my agent would have otherwise received, unless such change is consented to by all other beneficiaries who would have received the benefits but for the proposed change. The preceding limitation shall not apply to any designation of my agent as beneficiary in a fiduciary capacity, with no beneficial interest;

21. To act as my personal representative solely for the purpose of obtaining and receiving any and all Protected Health Information related to my health care and related to payments in regard to such health care, in accordance with the Health Care Insurance Portability and Accountability Act of 1996 (Pub. L. 104-191), 45 CFR Sections 160 and 164 ("HIPAA");

22. To request copies of my estate planning documents; and

23. To have full power to act in the management and disposition of all of my estate, affairs, and property of every kind and wherever situate, in such manner and with such authority as I myself might exercise if personally present, and to do all acts which my agent deems necessary in carrying out the foregoing.

Authority hereunder shall continue until revoked and until notice of such revocation shall be received by my agent. If, notwithstanding the foregoing, authority hereunder shall terminate without notice to my agent by reason of my death or for other cause, I agree on behalf of myself, my personal representatives, executors, administrators and assigns to indemnify and hold my agent harmless from any loss or liability resulting from my agent's acting pursuant to and in reliance upon this power of attorney before my agent learned of my death or such other cause. This power of attorney shall not be affected by my subsequent disability or incapacity or the passage of time.

In the event that protective proceedings for my estate are hereafter commenced, I hereby nominate my agent herein named to serve as the conservator of my estate. In the event that protective proceedings for my person are hereafter commenced, I hereby nominate that person named as my health care agent under my most recently signed Health Care Proxy to serve as the

guardian of my person. I further direct that my conservator and my guardian shall not be required to give any bond, or if required to give bond, shall be exempt from furnishing any surety on such bond.

IN WITNESS WHEREOF, I have hereunto set my hand on November 22, 2023.

Signed and sealed in
the presence of:

Witness

BOK ZA KIM

Tasha Berth
Witness

COMMONWEALTH OF MASSACHUSETTS
COUNTY OF MIDDLESEX

On November 22, 2023, before me, the undersigned notary public, personally appeared BOK ZA KIM, proved to me through satisfactory evidence of identification, which was:

☐ photographic identification, being _____,
☐ oath or affirmation of a credible witness, or
☑ personal knowledge of the undersigned,

to be the person whose name is signed on the preceding or attached document, and acknowledged to me that she signed it voluntarily for its stated purpose.

(Seal)

RYAN J. SWARTZ
MY COMMISSION EXPIRES JANUARY 2, 2026
NOTARY PUBLIC
COMMONWEALTH OF MASSACHUSETTS

Notary Public
My Commission Expires: 1/2/2026

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November 21, 2023 2:42:21 PM
100053 - ES – DPOA

MA

ACCEPTANCE BY AGENT

The undersigned acknowledges and accepts appointment as agent and agrees to serve as agent under the DURABLE POWER OF ATTORNEY FOR BOK ZA KIM, effective as of November 22, 2023. By accepting or acting under the appointment, the agent assumes the fiduciary and other legal responsibilities of an agent.

Dated: 05/31/2024

HYUN JU MINTON

LAURIE POLAND
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires
August 9, 2024

5/31/24

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA

COUNTY OF SONOMA

On 05/31, 2024, before me, Laurie Poland, a Notary Public, personally appeared HYUN JU MINTON, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument, and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

5/31/24

WITNESS my hand and official seal.

LAURIE POLAND
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires
August 9, 2024

(Signature)

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF SONOMA

I am employed in the County of Sonoma, State of California. I am over the age of eighteen (18) and not a party to the within action. My business address is 400 Aviation Boulevard, Suite 200, Santa Rosa, California 95403.

On May 31, 2024, I served the foregoing document(s) described as:

RESPONSE TO PROBATE NOTES

on the interested parties in this action as follows:

Hyun Ju Minton
Power of Attorney for Bok Za Kim
6 Socrates Way
Winchester, MA 01890

Bok Za Kim
93 Hazen Road
Shirley, MA 01464

[X] BY UNITED STATES MAIL

I enclosed the document(s) listed above in an envelope or package addressed to the person(s) at the address(es) listed above and placed the envelope or package for collection and mailing following this firm's ordinary business practices. I am readily familiar with this firm's practice of collecting and processing correspondence for mailing. Under that practice, on the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service with postage thereon fully prepaid at Santa Rosa, California. I am aware that, on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after the date of deposit for mailing.

[X] (STATE) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 31, 2024, at Santa Rosa, California.

Stephanie Opperman

Stephanie Opperman